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Gonzalez v. Skirball Cultural

Center

26STCV06955

Defendants' Demurrer to Complaint

Tentative Ruling

The demurrer is overruled.

Background

This case arises out of an employment relationship.

On March 3, 2026, Marian Gonzalez

("Plaintiff") filed a complaint against Skirball Cultural Center ("Skirball"), Nina J. Silver ("Silver"), and Does 1 through 20, asserting causes of action for:

(1) harassment based on

sex, gender, and/or sexual orientation in violation of the Fair Employment and Housing Act (the "FEHA"); (2) discrimination based on sex, gender, and/or sexual orientation in violation of the FEHA; (3) disability discrimination in

violation of the FEHA; (4) retaliation in violation of FEHA; (5) failure to take

all reasonable steps to prevent and/or remedy discrimination, harassment,

and/or retaliation in violation of the FEHA; (6) retaliation and/or wrongful termination

in violation of Labor Code section 1102; (7) wrongful termination in violation

of public policy; and (8) failure to rehire based on protected class and/or engagement

in protected activities in violation of the FEHA.

On May 11, 2026, Skirball and Silver (collectively, “Defendants”) filed this demurrer to Plaintiff’s Complaint. Plaintiff filed an opposition on June 16, and Defendants filed a reply on June 23.

The hearing on the demurrer was initially set for June 30 and was continued by the Court to July 20.

No trial date has been set.

Legal Standard

Code of Civil Procedure section 430.10 provides:

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

...

(e) The pleading does not state facts sufficient to constitute a cause of action.

(f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible. ...”

A general demurrer under Code of Civil Procedure section 430.10, subdivision (e), tests whether the complaint states a cause of action. (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; see also 1 Weil & Brown, California Practice Guide: Civil Procedure Before Trial [2025], ¶ 7:40.)

“We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. We also consider matters which may be judicially noticed.” (Centinela Freeman Emergency Medical Associates v. Health

Net of California (2016) 1 Cal.5th 994, 1010; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; accord Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 924; Marina Pacific Hotel and Suites v. Fireman's Fund Insurance Company (2022) 81 Cal.App.5th 96, 104.) All reasonable inferences must be drawn in favor of the pleading. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1081; Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at p. 104.) Even "improbable" facts alleged in the pleading must be accepted as true. (Marina Pacific Hotel and Suites, supra, 81 Cal.App.5th at pp. 104-105.)

Courts must "liberally construe the pleading" and "give the complaint a reasonable interpretation, reading it as a whole and its parts in context." (Id. at p. 105.)

A complaint must contain a "statement of facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1); see also C.A. v. William S. Hart High School Dist. (2012) 53 Cal.4th 861, 872 ["the complaint need only allege facts sufficient to state a cause of action"].) Ordinarily, a complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) Ultimate facts are those upon which "the right to recover depends" and are "essential" to the cause of action. (Estes v. Eaton Corp. (2020) 51 Cal.App.5th 636, 643 fn. 2; see also 1 Weil & Brown, supra, ¶ 6:124.)

A plaintiff is required to plead only "the essential facts of [its] case" that are sufficient "to acquaint a defendant with the nature, source and extent of [the] cause of action." (Doe, supra, 42 Cal.4th at p. 550.) Mere boilerplate or pleading of legal conclusions is not sufficient. (Id. at p. 551 fn. 5.) But a plaintiff need not allege "each evidentiary fact that might eventually form part of plaintiff's proof" at trial. (C.A., supra, 53 Cal.4th at p. 872.)

A demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is "disfavored" and will be sustained "only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (A.J.

Fistes Corp. v. GDL Best Contractors (2019) 38 Cal.App.5th 677, 695; accord Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn. 3.) A complaint need not be “a model of clarity” and must only contain sufficient allegations to put the defendants on notice of the claims against them. (A.J. Fistes Corp., supra, 38 Cal.App.5th at p. 695.) As the Court of Appeal has observed, “where a complaint is in some respects uncertain, ... ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616; see also 1 Weil & Brown, supra, ¶¶ 7:85-7:86.)

A demurrer can be sustained only when it disposes of an entire cause of action. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend should be granted when “there is a reasonable possibility that the defect can be cured by amendment.” (Centinela Freeman, supra, 1 Cal.5th at p. 1010; Blank, supra, 39 Cal.3d at p. 318; Shaeffer v. Califia Farms (2020) 44 Cal.App.5th 1125, 1145.)

Meet
and Confer

Before a demurrer is filed, the parties must “meet and confer in person, by telephone, or by video conference ... for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd. (a).) That requirement is satisfied. (Linehan Decl., ¶¶ 3-5.)

Requests
for Judicial Notice

Defendants ask the Court to take judicial notice of (1) the Skirball Cultural Center’s Articles of Incorporation filed with the California Secretary of State; (2) Plaintiff’s complaint with the California Civil Rights Department (“CRD”) dated February 20, 2024; (3) Plaintiff’s complaint

with the CRD dated March 4, 2025; (4) Plaintiff's complaint with the CRD dated January 21, 2026, and (5) Plaintiff's Complaint in this action. Plaintiff asks the Court to take judicial notice of a right to use letter issued by the CRD on November 19, 2024.

The requests are granted.

Discussion

From

approximately May 2018 to August 25, Plaintiff was employed by Defendant Skirball. (Compl., ¶¶ 56, 82.) Defendant Silver is alleged to have been in a position as supervisor and is alleged to have participated in the conduct at issue. (E.g., Compl., ¶ 67.) Plaintiff identifies as a homosexual, non-binary individual and uses the pronouns it/its. (Compl., ¶ 57.) In the complaint, Plaintiff asserts causes of action under the FEHA and other sources of law, alleging that it was subject to (among other things) discrimination, harassment, retaliation, and ultimately wrongful termination.

In their

demurrer, Defendants make essentially three arguments: (1) that Skirball is a religious organization that is excluded from the definition of an "employer" under the FEHA (Mem., at pp. 6-7); (2) that Plaintiff's FEHA causes of action, and perhaps Plaintiff's entire action, is time-barred (Mem., at pp. 8-11); and (3) that although the Sixth and Seventh Causes of Action in the Complaint are not brought under the FEHA, they are derivative of the FEHA causes of action and are also untimely (Mem., at p. 11.)

The Court

considers each argument in turn.

Skirball

as an "Employer" Under the FEHA

As a general

matter, the FEHA prohibits certain practices by "employers" (among others). In Government Code section 12926, subdivision (d), the FEHA provides the following definition of an "employer":

"(d) 'Employer' includes any person regularly employing five or more persons, or any person acting as an agent of an

employer, directly or indirectly, the state or any political or civil subdivision of the state, and cities, except as follows:

‘Employer’ does not include a religious association or corporation not organized for private profit.”

Government

Code section 12926.2, subdivision (f), further provides:

“(f) (1) Notwithstanding any other provision of law, a nonprofit public benefit corporation formed by, or affiliated with, a particular religion and that operates an educational institution as its sole or primary activity, may restrict employment, including promotion, in any or all employment categories to individuals of a particular religion.

(2) Notwithstanding paragraph (1) or any other provision of law, employers that are nonprofit public benefit corporations specified in paragraph (1) shall be subject to the provisions of this part in all other respects, including, but not limited to, the prohibitions against discrimination made unlawful employment practices by this part.”

In the

Complaint, Plaintiff alleges that Skirball is a “California Nonprofit Corporation” and “operates a Jewish cultural and educational center” in Los Angeles. (Compl., ¶¶ 6, 55.) In its Articles of Incorporation, as to which the Court has granted the request of Defendants to take judicial notice, Skirball is identified as a “nonprofit public benefit corporation” that is “organized exclusively for cultural and educational purposes, specifically, the perpetuation of Jewish values and beliefs”

(RJN, Exh. 1, at p. 1.)

Taking into

consideration the allegations in the Complaint and the matters subject to judicial notice, and drawing all reasonable inferences in favor of the Plaintiff, as the Court must on demurrer, the Court determines that it appears on this record that Skirball is a nonprofit public benefit corporation affiliated with a particular religion (Judaism) operating an educational institution as its sole or primary activity. Accordingly, in this matter, and on this record and at this stage of the proceedings, the Court determines that under Government Code section 12926.2, subdivision (f)(1) Skirball

may

restrict employment to individuals of a particular religion, but under subdivision (f)(2) Skirball is subject to the FEHA in all other respects, including, but not limited to, the anti-discrimination provisions of the FEHA.

This ruling is based solely on the allegations of the Complaint and the matters subject to judicial notice. The Court recognizes that on a fully developed factual record, the result could be different. (See, e.g., *Kelly v. Methodist Hospital of Southern Cal.* (2000) 22 Cal.4th 1108 [addressing issue on summary judgment]; *Henry v. Red Hill Evangelical Lutheran Church of Tustin* (2011) 201 Cal.App.4th 1041 [addressing issue after trial].)

The demurrer on this basis is overruled.

Statute
of Limitations

Subject to certain exceptions, a civil action asserting causes of action under the FEHA must generally be filed within one year of the date of the right-to-sue notice issued by the CRD. (See Gov. Code, § 12965, subd. (c).) Based on matters subject to judicial notice, Defendants argue that Plaintiff's FEHA causes of action are time-barred because the CRD issued a right-to-sue notices to Plaintiff on November 19, 2024 (RJN, Exh. 2), and Plaintiff did not file this lawsuit until more than one year later, on March 3, 2026.

Defendants omit critical facts from this argument, however. In the Complaint, Plaintiff alleges additional FEHA violations by after the issuance of the right-to-sue notice, including retaliation in the period of April through August 2025, leading up to the termination of Plaintiff's employment on August 27, 2025, and refusing to rehire Plaintiff in November 2025. (Compl., ¶¶ 77-85.)

Reading the Complaint in the light most favorable to Plaintiff, and drawing all reasonable inferences in Plaintiff's favor, as the Court must on demurrer, the Plaintiff has alleged in the Complaint continuing violations following the issuance of the right-to-sue notice in November 2024. And the Court

takes judicial notice (as requested by Defendants) that the CRD issued subsequent right-to-sue notices to Plaintiff on March 4, 2025, and January 21, 2026. (RJN, Exh. 3-4.)

Defendants argue that they were not served with these two subsequent complaints filed by Plaintiff with the CRD. Although the Court can take judicial notice of the fact that the CRD sent notices to Plaintiff's counsel requiring counsel to serve the CRD complaint on all named respondents (RJN, Exhs. 3-4), the Court cannot take judicial notice of whether that service did or did not occur. In ruling on this demurrer, the Court expresses no views on whether these two subsequent CRD complaints were properly served (or on the legal consequences of any failure to serve).

Finally, the Court rejects Defendants' reliance on *Acuna v. San Diego Gas & Electric Co.* (2013) 217 Cal.App.4th 1402. In *Acuna*, the Court of Appeal held that the plaintiff could not revive expired claims by filing a new DFEH complaint years after the alleged racial discrimination took place; the court also noted that there were no allegations of "continuing" discrimination or harassment. (217 Cal.App.4th, at p. 1417.) Here, in contrast, there are allegations of continuing violations of the FEHA after the right-to-sue notice was issued. Whether those continuing violations actually occurred is a matter that, of course, cannot be adjudicated on demurrer.

The demurrer on this basis is overruled.

The
Non-FEHA Causes of Action (Sixth and Seventh Causes of Action)

Defendants argue that their demurrer should be sustained as to the Sixth and Seventh Causes of Action in the Complaint should be sustained for essentially the same reasons as the FEHA causes of action, as the non-FEHA causes of action are derivative of the FEHA causes of action.

It is unclear why non-FEHA causes of action would be subject to demurrer on the ground that other causes of action, brought under the FEHA, are barred by specific statutory

provisions applicable to FEHA causes of action.

In any event, however, because the Court has concluded that the FEHA causes of action in the Complaint are sufficient to withstand demurrer, the Court also rejects Defendants' derivative challenge to the non-FEHA causes of action.

The demurrer on this basis is overruled.

Conclusion

The Court **OVERRULES** the demurrer filed by Defendants Skirball Cultural Center and Nina J. Silver.

Defendants

Skirball Cultural Center and Nina J. Silver are to file an answer or other responsive pleading by August 4, 2026.

Defendants are ordered to give notice.